

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 6	CCRB Case #: 201212129	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/19/2012 7:45 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2014	Precinct: 83		
Date/Time CV Reported Wed, 09/19/2012 8:13 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/19/2012 8:13 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. DT3 Eric Meza	05566	925744	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins entered and searched § 87(2)(b) in Brooklyn.	A . Complainant Uncooperative
B . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins threatened § 87(2)(b) with the use of force.	B . Complainant Uncooperative
C . DT3 Eric Meza	Abuse: Det. Eric Meza threatened § 87(2)(b) with the use of force.	C . Complainant Uncooperative

Case Summary

On September 19, 2012, § 87(2)(b) filed this complaint with the CCRB by telephone. On September 26, 2012, § 87(2)(b) provided a telephone statement.

On September 19, 2012, at 7:45 a.m., Det. Eric Meza and Sgt. Raymond Tomins, of the Warrant Squad, knocked on the door of § 87(2)(b)'s apartment, § 87(2)(b) in Brooklyn. When § 87(2)(b) opened the door, they pushed past him into the apartment without permission. The officers showed § 87(2)(b) a piece of paper that they claimed was a warrant, which showed the last name of a wanted individual to be "§ 87(2)(b)". The officers searched all of the rooms of the apartment, including under the mattresses and said that they could hurt or kill § 87(2)(b) and get away with it. Det. Meza and Sgt. Tomins left the location; no arrests were made or summonses issued.

Det. Meza and Sgt. Tomins provided their names to § 87(2)(b) § 87(2)(b) described Det. Meza as a Hispanic or white male and described Sgt. Tomins as a white male; in CTS, both Det. Meza and Sgt. Tomins are listed as white males. § 87(2)(g)

On September 25, 2012, and October 5, 2012, letters were mailed to § 87(2)(b) to the address he provided. One of these letters was returned by the United States Postal Service. Between September 26, 2012, and October 24, 2012, § 87(2)(b) was called five times. On September 26, 2012, § 87(2)(b) scheduled an appointment for October 5, 2012, for which he called to change the time of his appointment and then failed to appear and did not call to cancel or reschedule. On September 27, 2012, § 87(2)(b) was called and mediation was offered and rejected. Between October 10, 2012, and October 24, 2012, three additional phone calls were made and voicemail messages were left. A Lexis Nexis search provided no additional contact information for § 87(2)(b). A search of the New York City Department of Correction Inmate Lookup Service on December 27, 2012, showed that § 87(2)(b) is not incarcerated. It is therefore recommended that this complaint be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____

Title/Signature

Print

Date